

CYPRUS REPUBLIC

COMMISSIONER

File No.: 11.17.001.009.190

OFFICE OF THE COMMISSIONER FOR PERSONAL DATA PROTECTION

Complaint regarding data collection in a job application

DECISION

Based on the duties and powers conferred upon me by Article 57(1)(f) of Regulation (EU) 2016/679 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data (hereinafter referred to as the "Regulation"), I examined a complaint submitted to my Office on August 4, 2021, regarding the collection of excessive data in a job application to the company Stasis Estates (hereinafter referred to as the "Respondent"). I note that the complaint was submitted anonymously through the website of the Department of Labor Relations, which referred it to my Office, as its content falls within the jurisdiction of my Office.

Based on the investigation, I found a violation of the Regulation by the Respondent and, therefore, I issue this Decision.

A.

2. The following:

2.1. In the electronic job application of the Respondent, the following information was requested, among others: number of children, vehicle registration number, social insurance number, whether the candidates have applied for jobs with other employers and if so, with whom,

2.2. These questions require mandatory responses and constitute criteria for hiring or rejection,

2.3. The above questions constitute a violation of human rights.

In the complaint submitted to the Department of Labor Relations, the following were mentioned:

Positions of the Complainant

Facts of the Case

Positions of the Respondent

In the context of investigating the complaint, my Office sent the Respondent 3 letters on September 1, 2021, November 17, 2021, December 1, 2021, March 30, 2022, April 15, 2022, March 1, 2023, May 2, 2023, August 2, 2023, and October 24, 2023. In the above letters, the Respondent replied via letters on November 15, 2021, December 2, 2021, December 8, 2021, April 12, 2022, May 4, 2022, May 16, 2023, and October 30, 2023.

4. Among others, the following:

4.1. In the job application to the Respondent, the following information was requested:

- a.
- b.
- c.
- d.
- e.
- f.
- g.
- h.
- i.
- j.
- k.
- l.
- m.
- n.
- o.

- p.
- q.
- r.
- s.
- t.
- u.
- v.
- w.
- x.
- y.
- z.

and responsibilities, and reason for departure,
aa. true information.

4.2. The above information was mandatory for submitting the application, except for item i, namely the social insurance number.

4.3. The above personal data was requested so that the Respondent could:

- a.
- b.
- c.
- d.
- e.
- f.

interview or hire or inform unsuccessful applicants.

g. have all the necessary information required in case of hiring the candidate for submitting any requests to the relevant state services concerning the specific individual and their employment,

h. employment contract,

i. have all the necessary information required in case it is requested by the relevant state services concerning the specific individual and their employment.

evaluate the candidate's skills,

evaluate the candidate's academic qualifications,

evaluate the candidate's previous work experience,

evaluate the candidate's suitability for the position,

know the candidate's personal salary requirements,

be able to communicate with the candidate for possible personal acceptance of terms of personal data processing and confirmation of submission,

have all the necessary information required for the formation and signing.

My Office, in its letters to the Respondent, requested clarifications and provided suggestions regarding the necessity of collecting the information requested in the job application, as presented in paragraph 4.1 of this document.

5.1. It also provided suggestions concerning the wording included in the job application regarding the information on the processing and retention of personal data submitted in the context of the application.

Through her letters, the Respondent made the required modifications based on my suggestions or provided sufficient justification, according to which no related modification was necessary.

6. However, the Respondent did not remove the field concerning the salaries of the three previous work experiences. Therefore, this Decision pertains exclusively to that field - personal data.

7. Specifically, in her letter dated May 4, 2022, regarding the salaries of the three previous work experiences, the Respondent stated that she considers this data necessary for the examination of the job application. The amount of compensation for previous positions is as important as the positions,

roles, and responsibilities that the applicant held in those jobs. Without this, there cannot be a proper assessment of previous work experience. A previous employer employed a current applicant to perform a task for a monthly amount, not generally and vaguely. A previous employer billed a specific task with a specific amount, not generally and indeterminately. Just as it is necessary to know what work an applicant performed in previous jobs, it is equally necessary to know how they were compensated for that work by the employer who entrusted them to perform it. Therefore, the Respondent considers the existence of this field absolutely necessary for her internal corporate reasons and simultaneously believes that it does not violate personal data.

8. In her letter dated May 16, 2023, regarding this field, the Respondent stated, among other things, that she holds a contrary opinion to my position that this field should be removed. She maintains her initial position that she considers it an absolutely necessary field to be filled out with the justification provided. As she stated, she cannot evaluate any applicant for work if she does not know in advance the pricing of their work experience, as it is an integral part of it. The Respondent also mentioned that she will cooperate and respond with changes based on justified requirements but will not make changes based on opinions without documentation or justification that falls within her legal or regulatory obligations to the state. Regarding my Office's reference in the letter dated March 1, 2023, to the Respondent, that this data can be mentioned by the candidate if they wish during the interview, the Respondent stated that my Office defines the field as applicable during the interview, i.e., during the evaluation process and not the hiring process, thus my Office essentially accepts that there is generally no violation, i.e., data excessive for the intended purpose of evaluation.

9. My Office, among other things, states the following:

9.1. Her position on the collection of this data was fully justified, warranted, and reasoned and remains steadfast. The data that the Respondent requests falls within the requirement to submit only those personal data that are necessary for the evaluation of this.

9.2. Regarding the reference in my letter that "It does not necessarily mean that the previous salaries of the applicant align perfectly with the work they performed. Their salaries may have been very low or very high in relation to the work they performed. Their ability to meet the duties of the position in your company is not related to their previous salaries," the Respondent stated that:

9.2.1. "At no point in the previous letter, nor now, have we expressed the opinion that previous salaries align to any degree with the previously performed work." She also questioned, "What relevance does this remark have to the protection of personal data?"

9.2.2. With exactly the same principle of my Office's position, as the Respondent stated, "Their salaries may have been very low or very high in relation to the work they performed," the Respondent stated that the following applies:

9.2.2.1. "Perhaps their duties were much greater or much less than their capabilities,"

9.2.2.2. "Perhaps the job position was much higher or much lower than their capabilities,"

9.2.2.3. "Perhaps the time period during which they worked was much less or much greater than it should have been," and so on.

9.2.3. As a matter of principle, the above questions do not differ as hypothetical scenarios from the...

Question from my Office, as presented in paragraph 9.2. The Respondent concludes that with this logic, there should be no request for any reference to previous employment positions, in any parameter, and states that my Office has already accepted that the parameters included in the above questions do not violate personal data. Therefore, it raises the question of why the information regarding the three previous salaries is intrusive, while the parameters it presents in the aforementioned examples are not.

9.2.4. Regarding my Office's statement that "the ability to perform the duties of the position in your company (note: of the Respondent) is not related to their previous salaries," the Respondent stated the following (the positions of the Respondent are presented in quotation marks):

9.2.4.1. "The ability to perform the duties of the position in your company is not related to the duties they performed" because those duties could possibly have been much greater or much less than their capabilities. Therefore, they should not be asked about their previous duties.

9.2.4.2. "The ability to perform the duties of the position in your company is not related to the job position they held" because that job position could possibly have been much higher or much lower than their capabilities. Therefore, they should not be asked about their previous job positions.

9.2.4.3. "The ability to perform the duties of the position in your company is not related to the duration of time they worked" because the duration of time they worked could possibly have been much less or much greater than it should have been. Therefore, they should not be asked about the duration of time, and so on.

9.3. Regarding the question I raised in my letter dated August 2, 2023, "If your company deems the candidate suitable for the specific position, will they reject them solely because the pricing of their work experience does not align with what your company considers justified," the Respondent stated that the case on which the question is based to create a hypothetical scenario for my Office is, by definition, impossible and unfounded. As stated, previous employers, for their own reasons and based on their own judgment, provided a specific salary for a specific period, for specific duties, in a specific role, and so on, which an applicant accepted based on their own judgment.

9.3.1. The opinion of the Respondent, as well as the opinion of my Office, and that of anyone else who is not one of the two involved parties, regarding whether the salary was higher or lower than it should have been - and consequently, with the same logic and "demonstrating the absurdity and complete irrationality of the case," based on the aforementioned examples: whether the duties were beyond or less than their capabilities, whether the position was higher or lower than their abilities, whether the duration was longer or shorter than it should have been, and so on. As stated, the Respondent is not, nor am I or my Office, the former employer who priced a job, or the applicant who priced their work. Ultimately, the Respondent, I, or my Office are not the two parties that accepted and agreed on this matter. The Respondent raised the question of where exactly the "hypothesis of yours is based, namely that we have or could have an opinion that 'the salaries were very low or very high in relation to the tasks they performed'? If you have it, how exactly did you acquire it, on what basis do you rely, in what exact way or with what objective criteria should we have it as well, and what relation does such a thing have with the protection of personal data of anyone?"

9.4. As the Respondent stated, they do not price and could not price different individuals for the same role, with the same duties, same hours, etc., at the same price, that is, at the same salary. "This is obviously your opinion, it is the cornerstone of your position, an opinion that you project onto us, whether we have it or whether we should have it as well, or both." The Respondent stated that the reason they request information about previous jobs in various parameters is to have a complete picture of an applicant's previous work experience, including that pricing. They are not in a position to judge whether "the salaries were very low or very high in relation to the tasks they performed," as a possibility raised by my Office (that is, "It is possible that their salaries were very low or very high in relation to the tasks they performed."). The Respondent wonders how and on what criteria my Office or I can judge such a thing to consider it an element that could be used negatively against an applicant.

9.5. The Respondent, to explain "the absurdity...

and completely unreasonable the "position" of my Office, presented a reality and not a hypothesis, as she herself stated: "the simplest example of this is in a company engaged in sports, e.g., a football team. In the same role, in the same position, with the same duties, with the same schedules, etc. - for instance, in the role of a forward - there are individuals who, among themselves, are compensated and billed - both within the same team (among forward players and colleagues) and between teams (forwards in different teams) - with huge, monstrous differences. Billing for such a thing ranges from a few hundred to several thousand euros per month, up to hundreds of thousands of euros per week. Precisely because there are differences among individuals in the pricing of their work, even though they perform exactly the same role, with the same duties and responsibilities, with the same schedules, in the same position, etc." The Respondent stated that based on the position of my Office, "this is information that no football team is entitled to have about a prospective player because 'the ability to perform the duties of the position [...] is not related to their previous salaries.' Furthermore, since the prospective player may request a specific amount, their previous compensation constitutes

'an intervening fact, especially since there exists the field regarding the requested monthly earnings.'" Additionally, the Respondent stated that "the most unconscious, the most ignorant, the most unaware, understands that these have absolutely no relation to reality. Just as the above have no relation to the protection of personal data."

9.6. The above positions of the Respondent, which correspond to the observations of my Office, "are based on unfounded hypothetical scenarios that challenge our judgment and ability to judge as a company, ultimately having no relation to the protection of personal data, are unnecessarily and baselessly interjected into our internal evaluation and hiring process and therefore, ultimately, constitute an abuse of your power."

9.7. If they relate to the protection of personal data, the Respondent requests that I directly explain how exactly they relate, how exactly they are connected to my duties, and how exactly they relate to the contractual obligations of the Respondent towards me, and the legal obligations of the Respondent towards the state concerning my role, which is the protection of personal data and nothing else or further than that.

9.8. The Respondent believes that the questions from my Office, apart from having no relation - ultimately - to the protection of personal data, are part of a general effort to interfere in the internal process of the Respondent for evaluating applicants and applications, through hypothetical questions, assumptions, and scenarios. The Respondent stated that how she chooses to evaluate applicants, provided that no personal data of anyone has been violated, is not something that concerns me in any way. She also mentioned that further discussion on this matter is perceived by the Respondent as a direct attempt on my part to diminish the ability to have a comprehensive picture of applicants, as she deems necessary, and reserves all her legal rights to take legal or judicial action against this attempt. Furthermore, the Respondent noted that her next letter to my Office, "if this unrelated to personal data intervention of yours continues," will not come from her, but from her legal advisors. For this reason, she calls on me to immediately cease "this attempt to avoid this unpleasant outcome and to complete immediately, without further remarks and demands," referring to "the clarification of an alleged complaint against us."

9.9. The Respondent stated that there are numerous requests on the internet, from numerous companies, in which the points that my Office requests to be removed or changed are sought. Several of these requests are from large companies, much larger than the Respondent, with many more applicants, and thus, as

Legal Aspect

It was stated that complaints have certainly arisen. For this reason, the Respondent raised the following questions:

"11.1. Why are such requests still circulating, while we are in your crosshairs and are developing our applications based on your requirements? Is there no equality before the law? Are we subjected to adverse discrimination? Is there no transparent way for us to learn anything about the above?

11.2. What have you done regarding these complaints?

11.3. By what official means can we submit these requests and keep ourselves regularly informed about the progress of addressing our complaints, that other companies are requesting what you have asked us to remove or change, and thus they violate the personal data of the applicants?

11.4. In what exact way can we see the same zeal you have shown towards us, being similarly displayed towards these companies, based on the principle of equality before the law, a constitutionally protected right of ours?"

9.10. In conclusion, the Respondent stated that this letter, along with all previous correspondence, will be sent to the Auditor General, the Independent Authority Against Corruption, and the Parliamentary Committee on Institutions, Values, and the Commissioner for Administration, in the form of an official complaint for lack of equality before the law, adverse discrimination, and abuse of power against her.

B.

10. According to Article 4 of the Regulation, personal data is interpreted as "any information relating to

an identified or identifiable natural person ('data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, psychological, economic, cultural, or social identity of that natural person."

11. In Article 3(1) of the Regulation, it is provided that "This Regulation applies to the processing of personal data in the context of the activities of an establishment of a controller or a processor in the Union, regardless of whether the processing takes place within the Union."

12. As a controller, Article 4 of the Regulation defines it as "the natural or legal person, public authority, agency, or other body which, alone or jointly with others, determines the purposes and means of the processing of personal data; where the purposes and means of such processing are determined by Union law or the law of a Member State, the controller or the specific criteria for its designation may be provided for by Union law or the law of a Member State."

13. As processing, in the same article, namely Article 4 of the Regulation, it is defined as "any operation or set of operations which is performed on personal data or on sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure or destruction."

14. Regarding the Principles that should govern the processing of personal data, Article 5 of the Regulation provides that:

Personal data:

"1.

a) shall be processed lawfully and fairly in a transparent manner in relation to the data subject ('lawfulness, fairness, and transparency'),

b) shall be collected for specified, legitimate purposes and not further processed in a manner that is incompatible with those purposes; further processing for archiving purposes in the public interest or for scientific or historical research purposes or for statistical purposes shall not be considered incompatible with the initial purposes according to Article 89 paragraph 1 ('purpose limitation'),

c) shall be adequate, relevant, and limited to what is necessary for the purposes for which they are processed ('data minimization'),

d) shall be accurate and, when necessary,

****Updated;**** all reasonable measures must be taken for the immediate deletion or correction of personal data that is inaccurate, in relation to the purposes of processing ("accuracy"),

e) maintained in a form that allows the identification of data subjects only for as long as is necessary for the purposes of processing personal data; personal data may be stored for longer periods, provided that the personal data will be processed only for archiving purposes in the public interest, for scientific or historical research purposes, or for statistical purposes, in accordance with Article 89 paragraph 1 and provided that appropriate technical and organizational measures required by this regulation are applied to ensure the rights and freedoms of the data subject ("storage limitation"),

f) processed in a manner that ensures the appropriate security of personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, using appropriate technical or organizational measures ("integrity and confidentiality").

15. Under Article 57, paragraph 1, of the Regulation, the Commissioner for Personal Data Protection has, among other duties:

to monitor and enforce the application of this regulation,

"a)

f) to handle complaints lodged by the data subject or by a body, organization, or association in accordance with Article 80 and to investigate, as appropriate, the subject matter of the complaint and to inform the complainant about the progress and outcome of the investigation within a reasonable time frame, particularly if further investigation or coordination with another supervisory authority is

required.”

16. Regarding the submission of a complaint to the Supervisory Authority, Article 77 of the Regulation provides that:

“Subject to any other administrative or judicial remedies, every data subject has the right to lodge a complaint with a supervisory authority, in particular in the Member State of their habitual residence or place of work or of the place of the alleged infringement, if the data subject considers that the processing of personal data concerning them infringes this regulation.”

17. Under Article 58, paragraph 2, of the Regulation, the Commissioner for Personal Data Protection has the following corrective powers:

to order the controller to notify the breach

to impose a temporary or definitive limitation, including

“a) to issue warnings to the controller or the processor that intended processing operations are likely to infringe provisions of this regulation,

b) to issue reprimands to the controller or the processor when processing operations have infringed provisions of this regulation,

c) to order the controller or the processor to comply with the requests of the data subject to exercise their rights under this regulation,

d) to order the controller or the processor to bring processing operations into compliance with the provisions of this regulation, if necessary, in a specific manner and within a specified time frame,

e) to provide personal data to the data subject,

f) to prohibit processing,

g) to order the rectification or deletion of personal data or restriction of processing pursuant to Articles 16, 17, and 18 and to order notification of such actions to recipients to whom the personal data have been disclosed pursuant to Article 17 paragraph 2 and Article 19,

h) to withdraw certification or to order the certification body to withdraw a certificate issued in accordance with Articles 42 and 43 or to order the certification body not to issue certification, where the certification requirements are not met or are no longer met,

i) to impose administrative fines pursuant to Article 83, in addition to or instead of the measures referred to in this paragraph, depending on the circumstances of each individual case,

j) to a third country or to an international organization.”

Article 83 of the Regulation, regarding the general conditions for imposing administrative fines, provides that:

“1. Each supervisory authority ensures that the imposition of administrative fines in accordance with this article for infringements of this regulation that...

referenced in paragraphs 4, 5, and 6 must be effective, proportionate, and deterrent for each individual case.

2.

Administrative fines, depending on the circumstances of each individual case, are imposed in addition to or instead of the measures referred to in Article 58, paragraph 2, points (a) to (h), and in Article 58, paragraph 2, point (i). In making a decision regarding the imposition of an administrative fine, as well as regarding the amount of the administrative fine for each individual case, the following are duly taken into account:

(a)

the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the relevant processing, as well as the number of data subjects affected by the infringement and the degree of damage suffered, the intent or negligence that caused the infringement,

(b)

(c)

any actions taken by the data controller or the processor to mitigate the damage suffered by the data

subjects,

the degree of responsibility of the data controller or the processor, taking into account the technical and organizational measures implemented pursuant to Articles 25 and 32,

(d)

(e)

the processor,

(f)

the infringement and the limitation of its potential adverse effects,

(g)

the infringement,

(h)

the manner in which the supervisory authority became aware of the infringement, particularly whether and to what extent the data controller or the processor notified the infringement,

(i)

in cases where measures referred to in Article 58, paragraph 2, were previously ordered against the involved data controller or processor regarding the same subject matter, compliance with those measures,

(j)

approved certification mechanisms in accordance with Article 42 and any other aggravating or mitigating factors arising from the circumstances of the specific case, such as the economic benefits gained or losses avoided, directly or indirectly, from the infringement.

3.

In the event that the data controller or the processor, for the same or related processing operations, violates several provisions of this regulation, the total amount of the administrative fine shall not exceed the amount specified for the most serious infringement.

the categories of personal data affected by any relevant previous infringements of the data controller or the degree of cooperation with the supervisory authority for the remedy of the compliance with approved codes of conduct in accordance with Article 40 or

Recital

G.

19. Under the definition of personal data, as referred to in Article 4 of the Regulation, it follows that the salary of a data subject constitutes personal data, as it identifies and/or constitutes the economic identity of the data subject. This data concerns an identified person, or with the processing of this data, it is possible to ascertain the identity of a person.

20. The collection of this data, as well as its use by the Controller, constitutes processing acts, as indicated in Article 4 of the Regulation.

Regarding the processing of this data, as well as other data

21.

which is obtained in the context of the job application, the Controller is the data controller, as it has determined the purposes of the processing, as well as the manner of processing this data.

22. The Controller is a company established in Cyprus; therefore, it follows that the Regulation applies to the processing activities carried out by the Controller, since under Article 3 of the Regulation, the Regulation "applies to the processing of personal data in the context of the activities of an establishment of a data controller or processor in the Union, regardless of whether the processing takes place within the Union."

23. Under Article 57(1)(f) of the Regulation, I have the duty to monitor and enforce the application of the Regulation. Taking the above into account, and in response to a relevant question from the Controller, as presented in paragraph 9.7. of this document, it follows beyond any

****24.**** It is also clear, beyond any doubt, that the obligation of the Respondent to comply with the

Regulation, as well as with the Law on the Protection of Natural Persons Against the Processing of Personal Data and the Free Movement of Such Data of 2018, Law No. 125(I)/2018, is incumbent upon them, and that my Office is the competent Supervisory Authority.

****25.**** As I have mentioned above, the investigation I have conducted is my duty. Therefore, the Respondent's reference to a general attempt to interfere in their internal process is unfounded and baseless, and the use of the phrase "abuse of your power" is not only inappropriate but also invalid. The fact that the recruitment process is an internal procedure of the Respondent does not in any way negate or exempt the Respondent from their obligations under the Regulation and Law No. 125(I)/2018.

****26.**** Furthermore, the Respondent's reference to "clarification of an alleged complaint against us," in conjunction with the above, constitutes an affront to my Office and to the institution I serve. This, combined with the Respondent's reference to "intervention unrelated to personal data," indicates a misunderstanding on the part of the Respondent regarding the protection of personal data and their obligations, as these arise from the Regulation and Law No. 125(I)/2018.

****27.**** The personal data being processed must, as stipulated in Article 5 of the Regulation, "be adequate, relevant, and limited to what is necessary for the purposes for which they are processed ('data minimization')." Therefore, only the data that is absolutely necessary for the assessment of the job application should be submitted and processed.

****28.**** As stated in the Commissioner for Personal Data Protection's Guidance on the processing of personal data in the field of employment relations, which is posted on my Office's website, "The personal data that employers request from candidates during recruitment processes must be relevant to the nature of the work. The employer should only request those personal data from candidates that are necessary to assist them in selecting specific candidates and which are relevant to the duties of the position they wish to fill."

****29.**** Personal data should only be processed if the purpose of the processing cannot be achieved by other means. Therefore, if the purpose can be achieved by other means, including less intrusive means, then only those means necessary to achieve the purpose should be used. This aims to ensure that there is no interference, in any way, with the individual's privacy.

****30.**** I do not consider the data regarding previous work experiences, such as the employer, location, dates of employment, position, duties - responsibilities, as excessive data or intrusive means. By using and processing this data, the prospective employer can evaluate and obtain information about the candidate's work history - experience, in order to understand whether this experience will help the applicant meet and succeed in their "new" duties.

****31.**** To assess whether the applicant is suitable for a specific position, they may be asked questions related to the subject matter and/or the nature of the position for which they are applying, so that, in addition to evaluating whether they can meet the duties of the desired position, it can also be investigated and/or assessed whether their previous experience is relevant and can positively (or negatively) influence the hiring of the applicant.

****32.**** However, the salaries from previous work experiences indicate the financial status and/or financial identity that the applicant - candidate had or has. Therefore, any processing of relevant data should be avoided and carried out only when necessary.

****33.**** These salaries do not belong to the main characteristics (for example, company, position, duties - responsibilities) of the applicant concerning their work experience. Considering that there are other data, which are not excessive or intrusive, as mentioned above, that contribute to the evaluation of work experience, it is evident that the salaries from previous work experiences constitute excessive data, in violation of the Principle of Minimization, namely Article 5(c) of the Regulation.

****34.**** In the letter to the Respondent, dated March 1, 2023, I mentioned that the salaries from previous work experiences can be referred to by the...

****35.**** The possibilities mentioned by the Applicant, as follows:

- "Possibly the job position was much higher or much lower than..."
- "Possibly the duties were much greater or much less than..."

are applicable, should the candidate wish to refer to them during the interview. It is evident that I maintain this position. However, considering the imbalanced relationship that exists between the candidate and the potential employer company, the candidate's reluctance to mention this information should not, under any circumstances, negatively impact or work against the candidate. The submission of this information by the candidate during the interview does not, in essence, imply that there is generally no violation, or that it is excessive for the intended purpose of evaluation, as mentioned by the Applicant, but I acknowledge the candidate's possible desire to refer to this information so that it can be evaluated within the context of the process. I reiterate that the failure to mention this information should not operate negatively against the candidate.

****36.**** In the Applicant's letter, however, there are positions that do not support the necessity of collecting this information. The Applicant stated that "at no point in the previous letter, nor now, have we expressed the opinion that previous salaries correspond to any degree with the previously performed work." If the Applicant believes that previous salaries do not correspond in any degree with the previously performed work, then why is this information being requested?

****36.1.**** I find that the possibilities presented in paragraph 9.2.2 are clearly stated, namely that:

- "his abilities,"
- "his potentials,"
- "less or much greater than it should be," as well as that
- "the tasks he performed."

The fact that the above possibilities are possible does not mean that the Applicant should not request some of the above personal data to evaluate the candidates. The Applicant should request and, in general, process only the data that is necessary within the context of the hiring process and that does not interfere with the applicant's privacy.

****37.**** Regarding the Applicant's position in paragraph 9.2.4 that because it could, possibly, be that his duties were much greater or much less than his abilities, therefore it should not request his previous duties, I find that previous duties, especially related duties, are necessary within the context of the hiring process, as they demonstrate relevant experience/previous employment of the applicant and skills and/or knowledge that he has acquired. I find the same regarding the position he held, as well as the duration for which he worked.

****38.**** The Applicant stated that the opinion of the Applicant, mine, or my Office regarding whether the salary was higher or lower than it should have been is devoid of content and substance. Since neither she, nor I, nor my Office is an involved party, then based on the Applicant's response, the same conclusion arises regarding whether the duties were beyond or less than his abilities, if the position "Possibly the duration during which he worked was much..." "Possibly, his salaries were very low or very high in relation to the..." was higher or lower than his capabilities, if the duration was longer or shorter than it should have been, and so on.

****38.1.**** If the Applicant believes that her opinion is devoid of content and substance regarding whether the salary was higher or lower than it should have been, then why is she requesting this specific information? My Office has not expressed a "hypothesis (...) by definition," that the Applicant has or could have an opinion that "his salaries were very low or very high in relation to the tasks he performed." My Office has merely expressed a possibility; after all, the aforementioned statement in my letter begins with the word "Possibly." The fact that the Applicant believes she could not have an opinion on this matter supports the notion that the Applicant does not need this information to assess a candidate. In any case, the fact that the Applicant cannot determine whether "his salaries were very low or very high in relation to the tasks he performed" does not negate the existence of this possibility.

****39.**** Furthermore, my Office has not stated that it has an opinion that "his salaries were very low or very high in relation to the tasks he performed," nor does it obviously have "objective criteria" to

ascertain this. My Office has simply expressed a possibility. The fact that neither the Applicant, as she stated, can have an opinion, since she mentioned "in what exact way or by what objective criteria should we have it as well," indicates that the...

specific data is not required for achieving the intended purpose. My Office has not reported that it has criteria by which it can judge that it is a piece of information that could be used negatively against an applicant. In any case, the Principle of data minimization does not concern cases where the processing of data could be used negatively against the data subject, but in cases where the processing of the said data is not required and is not necessary, and therefore, the processing is considered as an intrusive measure towards the data subject.

40. As mentioned by the Respondent, they do not invoice and could not invoice different individuals for the same role, with the same duties, the same schedules, etc., at the same price, that is, at the same salary. Regarding invoicing, other factors come into play, which are not necessarily and/or directly related to the applicants, but to other factors, for example, to the employing company, which the prospective employer may not be aware of.

41. The Respondent stated that the reason they request information about previous jobs in various parameters is to have a complete picture of the previous work experience of an applicant, including the invoicing thereof. The creation of a "complete picture of previous work experience" does not coincide with the Principle of data minimization.

41.1. What would happen, for example, if a company requested from applicants significantly more information, such as the number of sick leaves in previous years, to create a "complete picture of previous work experience"? This could potentially lead to a violation of the said Principle, particularly due to the processing of sensitive data. In any case, the requirement should be to process only those data that are necessary for achieving the intended purpose.

42. Regarding the example mentioned by the Respondent, as presented in paragraph 9.5 of this document, I recognize that two candidates with the same role, in the same position, with the same duties, with the same schedules, may have a huge difference in salary, both within the same company (in the example, within the same team) and between different companies. Obviously, in this case, the previous company plays a role, as well as the exact duties of each candidate and how successful they have been in those.

43. However, recognizing the existence of such cases, I believe that under certain conditions, the salaries of previous work experiences could be requested. Previous salaries could be requested in recruitment processes for managerial and/or senior positions, not from the initial stage of the process (i.e., not for all applicants), but only for those who have successfully passed the initial stage or stages of the process. The processing of this data for the specific positions may be considered necessary, taking into account the significant duties that will be assigned to the successful applicant. In any case, even adhering to the above conditions, the company should weigh the necessity of processing the said data.

43.1. Furthermore, as it appears, the processing of the said data does not seem to be justified, for example, in cases of manual labor, technical work, or in cases of personnel in low-level positions.

44. Nevertheless, the Respondent used the specific job application form without modifying it according to the level of the position to be filled. Furthermore, based on the above analysis, and evaluating the information that the Respondent has submitted to my Office, I find that the Respondent has not demonstrated that the collection and, in general, the processing of the salaries of previous work experiences is justified, without taking into account the position to be filled. That is, the Respondent has not conducted a proper assessment that justifies the collection of this data for any job position. As it appears, the Respondent did not comply with the Principle of minimization, that is, Article 5(1)(c) of the Regulation.

45. Regarding the Respondent's reference to other "numerous" applications online, in which applicants are asked for the points that my Office requests to be removed or changed, I remind that I am duly

investigating complaints that are submitted for violations of personal data. The fact that, as stated by the Respondent, there are other applications that request the same information does not constitute an excuse, nor does it mean that I will not investigate the complaint that has been submitted against the Respondent. In any case, with the submission of a complaint to my Office, the investigation process is also initiated.

46. The Respondent is not subjected to adverse discrimination. I remind that I am obliged to investigate the complaint that has been submitted against her. Regarding the Respondent's question about equality and the existence of a transparent way of informing about other applications, I state that the Decisions I issue are posted on my Office's website and presented in my Office's Annual Report. Furthermore, summaries of the complaints - allegations that I investigate, the investigation of which did not result in the issuance of a Decision, are recorded in the Annual Report.

Regarding the reference of the Respondent that her letter dated October 30, 2023, will be sent to the Auditor General, the Independent Authority Against Corruption, and the Parliamentary Committee on Institutions, Values, and the Commissioner for Administration, in the form of an official complaint for lack of equality, discrimination, and abuse of power against her, and that she reserves her legal rights to take legal or judicial action, I state that the Respondent may take the actions she deems necessary for her defense. Moreover, Article 78(1) of the Regulation explicitly provides that "Subject to any other administrative or non-judicial appeal, every natural or legal person has the right to an effective judicial remedy against a legally binding decision of a supervisory authority concerning them." Furthermore, as stated in the accompanying letter of the Decision, which is communicated to the Respondent along with the Decision, the Respondent has the right under Article 146 of the Constitution and the Law on the Establishment and Operation of Administrative Courts of 2015, Law No. 131(I)/2015, to appeal to the Administrative Court against the Decision, if she wishes, within seventy-five days from its notification to her. Also relevant are the provisions of Article 28 of the Law on the Protection of Natural Persons Against the Processing of Personal Data and the Free Movement of Such Data of 2018, Law No. 125(I)/2018, under which:

"28. Every natural or legal person has the right to appeal against a decision of the Commissioner before the Administrative Court."

Conclusion

Beyond this, the reference of the Respondent regarding the "outrageous and completely unreasonable nature of my placement" and that "The most unconscious, the most ignorant, the most unaware, realizes that these have absolutely no relation to reality. Just as the above have no relation to the protection of personal data," not only demonstrate an incorrect understanding of the Respondent regarding the protection of personal data and her obligations, but also constitute an affront to the institution which I am mandated to serve; for this reason, I call upon the Respondent to behave appropriately and not with derogatory remarks because she is under investigation.

D.

Taking into account all the above elements, as they have been presented, and based on the powers granted to me under Article 57(1)(στ) of the Regulation, I find that there is a violation by the company Stasis Estates:

- of Article 5(1)(γ) of the Regulation, since as the data controller, it did not adhere to the Principle of Minimization, collecting data that is not limited to what is necessary for the purposes for which it is processed.

Based on the provisions of Article 83 of the Regulation, regarding the conditions for the imposition of administrative fines, to the extent that they apply in the specific case, in determining the administrative fine, I took into account the following mitigating (a) - (c) and aggravating (d) - (e) factors:

(a) the absence of intent on the part of the Respondent,

the above mitigating and aggravating factors, the applicable legislative framework regarding the

prescribed administrative sanctions, the categories of data that were processed, in which there is no finding of the Respondent's lack of awareness regarding her obligations based on the fact that only one complaint has been submitted concerning the collection of data in all circumstances and the factors that the complainant and the Respondent (b) include special categories of data, (c) due to data, (d) of the Regulation and Law No. 125(I)/2018, (e) the fact that the finding of the violation arose after a complaint was submitted to my Office, and not after relevant communication and/or notification from the Respondent.

After taking into account and considering:

(a) the provisions of Article 58(2) and Article 83 of the Regulation, (b) presented before me based on all existing correspondence, (c)

I find that, under the circumstances, the imposition of an administrative fine is not justified.

Nevertheless, having regard to the aforementioned facts, the legal aspect on which this Decision is based, and the analysis as explained above, and exercising the powers granted to me by Article 58(2)(δ) of the Regulation,

I decided

at my discretion and in accordance with the above provisions, to issue to the company Stasis Estates an Order to:

- modify and/or adjust the job application form so that it collects data regarding the salaries that applicants had in previous work experiences, only in cases of hiring for managerial and/or senior positions, not at the initial stage or stages of the hiring process, conducting for each such process, an assessment of the necessity of processing such data, and
- inform me regarding her actions within two months from the receipt of this Order.

February 21, 2024

Eirini Loizidou Nicolaidou

Commissioner for the Protection of Personal Data